(b) *Permissible.* (1) * * *

(vii) Handstamped imprints, except when the added matter is in itself personal or converts the original matter to a personal communication.

* * * * *

NOTE: The corresponding Postal Manual sections are 135.51 and 135.521g.

PART 145—PHILATELY

II. In § 145.1, paragraph (c) is revised to furnish new instructions on the sale of commemorative stamps.

§ 145.1 Commemorative stamps.

* * * * *

(c) *Sale of commemorative stamps.* Commemorative stamps will be placed on sale at all offices on the general release date in accordance with the following schedule:

(1) *Plate number blocks.* Plate number blocks are the stamps (usually requested in blocks of four) located on one corner of a sheet of stamps with a plate number printed on the margin. Stamp clerks must not remove plate number blocks in advance from a large number of sheets for the benefit of individual purchasers. Plate blocks may be laid aside, however, as sheets are broken for regular sale purposes and may be sold as an accommodation to local stamp collectors.

(2) *Regular stamp windows.* Place stamps on regular sale, holding aside only enough for the local philatelic demand. It is desirable that the stock be sold within 90 days. If not, sell any remaining stamps including those previously set aside for philatelic use by offering them to all customers in lieu of other sheet stamps. However, if a patron prefers regular stamps in lieu of commemorative stamps, make the regular stamps available. It is the Department's wish that no commemorative stamps be destroyed and that none remain on hand at regular stamp windows beyond 90 days after issuance. An exception would be a stamp issued for a special area-wide event which is being celebrated beyond the 90-day period.

(3) *Philatelic windows*—(i) *Time on sale.* Those offices with full or part-time philatelic windows may keep an issue on sale until it is removed from sale at the Philatelic Sales Unit. When notice is published in the Postal Bulletin of removal of a stamp from sale in the Philatelic Sales Unit, the item will be immediately withdrawn from the philatelic window of post offices and the stock sold for regular postage purposes.

(ii) *Plate numbers.* The sale of plate numbers and marginal markings at philatelic windows shall be restricted as follows:

Denomination	*Minimum Purchase*
1¢ to 20¢ inclusive	Full panes of each.
25¢ to 50¢ inclusive	Strips of 20 stamps each.
$1 to $5 inclusive	Four stamps each.

(iii) *Availability of back-issue commemoratives.* Post offices which maintain or establish special philatelic windows should notify the Accountable Paper Section, Procurement Division, Post Office Department, Washington, D.C. 20260, so that their office can be kept informed of the back-issue commemoratives which are available.

(4) *Outside sales of commemorative stamps.* Postmasters shall not accept mail orders for postage stamps from patrons outside the limits of the area served by their post office, and any such requests shall be returned to the sender calling attention to the services provided by the Philatelic Sales Unit, City Post Office, Washington, D.C. 20013.

NOTE: The corresponding Postal Manual section is 145.13.

PART 153—MAIL DEPOSIT AND COLLECTION

III. In Part 153 a new § 153.8 is added reading as follows:

§ 153.8 Local ordinances and State laws.

Postmasters are expected to report to regional offices any contemplated action by local or State authorities to enact or consider enactment of local ordinances or State laws which would adversely affect operating costs or performance of postal service.

NOTE: The corresponding Postal Manual section is 153.8.

PART 154—CONDITIONS OF DELIVERY

IV. In § 154.1 paragraph (a) is amended by inserting a new sentence as the sixth sentence therein.

§ 154.1 Delivery to persons.

(a) *Delivery to addressee.* * * * Form 2150, Notice for Prohibitory Order Against Sender of Pandering Advertisement in the Mails, may be used for this purpose. * * *

* * * * *

NOTE: The corresponding Postal Manual section is 154.11.

PART 155—CITY DELIVERY

V. In § 155.6 paragraph (a)(1) is amended to require separate addresses when mail receptacles are provided at two or more locations in an apartment building; and paragraph (b)(7)(i) is amended for purposes of clarification.

In § 155.6 *Apartment house receptacles,* make the following changes: In paragraph (a) add a new subdivision (i) to subparagraph (1), and in paragraph (b)(7) amend subdivision (i) to read as follows:

§ 155.6 Apartment house receptacles.

(a) *Conditions requiring installation of receptacles.* (1) * * *

(i) The delivery of mail in a new apartment house where approved mail receptacles are installed at two or more entrances is contingent upon assignment of a different address number to each entrance. The tenants' correct mailing address shall be the address of the entrance at which their mail receptacles are located.

* * * * *

(b) *Specifications for construction of receptacles.* * * *

(7) *Numbers and name cards.* (i) Vertical-type receptacles must be satisfactorily numbered or lettered in numerical or alphabetical sequence from left to right; horizontal-type receptacles must be numbered or lettered in sequence vertically from top to bottom so that in a given column of boxes the assigned numbers or letters are consecutive, with the next higher number in a column always below the lower number. These arrangements will enable the carrier to expeditiously deliver the mail.

* * * * *

NOTE: The corresponding Postal Manual sections are 155.611 and 155.627a.

PART 166—SPECIAL DELIVERY

VI. In § 166.1 paragraph (a)(2) is amended to change "letter carrier service" to "city delivery service".

§ 166.1 Description of special delivery.

(a) *Points of delivery.* * * *

(2) Points within the delivery limits of any post office having city delivery service.

* * * * *

NOTE: The corresponding Postal Manual section is 166.11b.

(5 U.S.C. 301, 39 U.S.C. 501, 4009, 4555, 6001)

TIMOTHY J. MAY,
General Counsel.

[F.R. Doc. 68-14607; Filed, Dec. 5, 1968; 8:48 a.m.]

Title 43—PUBLIC LANDS: INTERIOR

Chapter II—Bureau of Land Management, Department of the Interior

APPENDIX—PUBLIC LAND ORDERS

[Public Land Order 4550]

[New Mexico 4557, 5093, 5243]

NEW MEXICO

Partial Revocation of Executive Orders No. 6276 and No. 6583

Correction

In F.R. Doc. 68-13909 appearing at page 17177 of the issue for Wednesday, November 20, 1968, lines 4 and 5 under "T. 11 S., R. 7 W.," should read "Sec. 33, lot 3, NE¼, W½NW¼, SE¼NW¼, NE¼SW¼, and N½SE¼;".

Proposed Rule Making

DEPARTMENT OF AGRICULTURE

Consumer and Marketing Service

[7 CFR Part 1061]

[Docket No. AO–367]

MILK IN SOUTHEASTERN MINNESOTA-NORTHERN IOWA MARKETING AREA

Notice of Recommended Decision and Opportunity To File Written Exceptions on Proposed Marketing Agreement and Order

Pursuant to the provisions of the Agricultural Marketing Agreement Act of 1937, as amended (7 U.S.C. 601 et seq.), and the applicable rules of practice and procedure governing the formulation of marketing agreements and marketing orders (7 CFR Part 900), notice is hereby given of the filing with the Hearing Clerk of this recommended decision with respect to a proposed marketing agreement and order regulating the handling of milk in the Southeastern Minnesota-Northern Iowa marketing area. Interested parties may file written exceptions to this decision with the Hearing Clerk, U.S. Department of Agriculture, Washington, D.C. 20250, by the 20th day after publication of this decision in the FEDERAL REGISTER. The exceptions should be filed in quadruplicate. All written submissions made pursuant to this notice will be made available for public inspection at the office of the Hearing Clerk during regular business hours (7 CFR 1.27(b)).

Preliminary statement. The hearing on the record of which the proposed marketing agreement and order, as hereinafter set forth, were formulated, was conducted at Rochester, Minn., on July 9–12, 1968, pursuant to notice thereof which was issued June 14, 1968 (33 F.R. 9026).

The material issues of record relate to:

1. Whether the handling of milk produced for sale in the proposed marketing area is in the current of interstate commerce, or directly burdens, obstructs, or affects interstate commerce in milk or its products;

2. Whether marketing conditions show the need for the issuance of a milk marketing agreement or order which will tend to effectuate the policy of the Act; and

3. If an order is issued what its provisions should be with respect to:

(a) The scope of regulation;

(b) The classification and allocation of milk;

(c) The determination and level of class prices;

(d) Distribution of proceeds to producers; and

(e) Administrative provisions.

This decision deals with all issues considered at the hearing except the classification and pricing of skim milk and butterfat in "filled milk" and "imitation milk." This issue is reserved for a later decision.

Findings and conclusions. The following findings and conclusions on the material issues are based on evidence presented at the hearing and the record thereof:

(1) *Character of the commerce.* All milk to be regulated by the proposed marketing agreement and order is in the current of interstate commerce, or directly burdens, obstructs, or affects interstate commerce in milk and its products.

The marketing area specified in the proposed order, hereinafter referred to as the "Southeastern Minnesota-Northern Iowa marketing area," includes all the territory within 20 counties in the State of Minnesota and six counties in the State of Iowa. The specific counties are listed in the marketing area discussion. Principal places within this marketing area include Rochester, Winona, Austin, Mankato, Albert Lea, and Faribault, Minn.; Decorah and Algona, Iowa.

Within the proposed marketing area there is interstate movement of milk from farms to processing plants, of bulk and packaged fluid milk products from plant to plant, and of packaged fluid milk products from plants to consumers. Cooperative associations in Minnesota ship bulk milk to several other States. Minnesota plants supply manufactured milk products to consumers in many other States.

Milk moves from farms located in Iowa and Wisconsin to plants located in Minnesota which would be regulated under this proposed order. The Rochester Milk Producers Association has member dairy farmers producing Grade A milk who are located in northern Iowa, western Wisconsin, and southeastern Minnesota. Milk from these farms is delivered to plants located in Rochester, Minn.

Minnesota plants which would be regulated under this proposed order receive bulk milk from Rochester Dairy Cooperative's plant at Alma, Wis. Packaged fluid milk products move from a plant at Rochester, Minn., which would be regulated, to Wisconsin plants in La Crosse and Eau Claire.

Packaged fluid milk moves from Minnesota plants which would be regulated to consumers in Iowa and Wisconsin. At least two of the Minnesota handlers (Marigold Foods and Golden Dairy) who would be regulated under the terms of the order as recommended herein have sales beyond the boundaries of the state in which the plant is located. Marigold Foods, Inc., with plants located in Austin, Mankato, and Rochester, Minn., distributes fluid milk products to consumers in Iowa and Wisconsin. Golden Dairy, located at Austin, Minn., distributes milk in several Iowa counties.

Several of the cooperative associations who petitioned for a Federal order supply milk to plants in other States. Preston Cooperative Creamery ships bulk fluid milk from a Minnesota reload point to plants in Illinois. During the past year, Rice County Cooperative, located in Minnesota, has sold bulk fluid milk to plants in Iowa, Illinois, Missouri, and Arkansas. Spring Valley Cooperative of Minnesota, which operates a supply plant regulated under the Southern Illinois order, ships bulk milk to Illinois milk plants.

Butter manufactured at plants located in the proposed marketing area is sold primarily on the New York wholesale market for distribution throughout the United States. Manufactured milk products made at Rochester Dairy Cooperative's main plant at Rochester, Minn., are moved into other States for distribution. This plant manufactures butter, nonfat dry milk, dry whole milk, dried whey, blends of powder for the bakery and ice cream trade, dried buttermilk, ice cream mix, and condensed milk. The general manager of the plant indicated that these manufactured products were distributed throughout most of the United States.

(2) *Need for an order.* Marketing conditions in the Southeastern Minnesota-Northern Iowa marketing area are such that the issuance of a marketing agreement or order to regulate the handling of milk will tend to effectuate the declared policy of the Act.

Thirty cooperative associations representing dairy farmers petitioned the Department of Agriculture for a public hearing to consider a proposed order. The petitioners represent about 80 percent of the producers who supply plants which would be regulated by this order. These producers are members of 22 cooperative associations.

The other eight cooperative associations had no producers supplying this market. Some of these associations have a small number of Grade A producers who are delivering their milk to manufacturing plants. Other petitioners have a large number of Grade A producers who are participating in a "standby pool." The "standby pool" is a voluntary marketing arrangement between plants in Minnesota and Wisconsin which have a supply of Grade A milk available and distributing plants in other areas who may need this milk on some occasions. Although these eight associations do not have producers now supplying handlers who would be regulated by this order, they support the order because it would provide a stable alternative market if they should find it impossible or undesirable to retain their present market.